

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jacqueline Levy(F)	Team: Team # 5	CCRB Case #: 201107961	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 06/14/2011 7:30 PM	Location of Incident: Hinsdale Street between Belmont Avenue and Sutter Avenue	18 Mo. SOL 12/14/2012	Precinct: 75
Date/Time CV Reported Wed, 06/15/2011 9:23 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/20/2011 3:04 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael White	04207	907749	NARCBBN
2. DT3 Dennis Friendly	02755	930185	NARCBBN
3. An officer			NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Michelle Martinez	07087	935258	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Force: An officer used physical force against § 87(2)(b)	A . Complaint Withdrawn
B . SGT Michael White	Force: Sergeant Michael White used physical force against § 87(2)(b)	B . Complaint Withdrawn
C . DT3 Dennis Friendly	Force: Detective Dennis Friendly used physical force against § 87(2)(b)	C . Complaint Withdrawn

On June 15, 2011, § 87(2)(b) filed this complaint with IAB by telephone. This complaint was received by the CCRB on June 20, 2011 via log number 11-27512. On July 18, 2011, § 87(2)(b) provided a brief statement regarding the incident.

§ 87(2)(b) went to § 87(2)(b) Hospital where he was treated for a fractured nose and contusions to the back. The black male officer and Detective Friendly took him to the hospital. § 87(2)(b) noted that he also had abrasions on his head and arms and bumps on his head.

§ 87(2)(b) described Sergeant White and Detective Friendly as black male officers. He heard other officers refer to Sergeant White by name and heard Detective Friendly provide his name and shield number, which § 87(2)(b) heard as “5755,” to a nurse at § 87(2)(b) Hospital. In CTS, Detective Friendly’s badge number is listed as 2755 and both he and Sergeant White are listed as black males. § 87(2)(b) described the third subject officer as a black male officer who was 6’ tall with a medium build in his early thirties. No information gleaned from police documents provided the identity of this third officer. Therefore, allegation A is being pleaded against an officer from Narcotics Borough Brooklyn North, allegation B is being pleaded against Sergeant White, and allegation C is being pleaded against Detective Friendly.

On July 28, 2011, § 87(2)(b) withdrew his complaint on his attorney's advice because he has a pending, unrelated civil case against the NYPD. He confirmed that he was withdrawing the complaint of his own free will and that he was not coerced by any member of the New York City Police Department or the Civilian Complaint Review Board. ASI Carlmais Johnson reviewed the recorded withdrawal on July 29, 2011 and verified that it was voluntary and without coercion. A withdrawal form has been mailed to § 87(2)(b) and it will be included in the case file upon its receipt. § 87(2)(g)

Supervisor: _____

Title/Signature	Print	Date
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Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date